IN THE SUPERIOR COURT OF JUDICATURE

IN THE HIGH COURT OF JUSTICE

[COMMERCIAL COURT]

HELD IN ACCRA ON 23RD OCTOBER, 2025

BEFORE HIS LORDSHIP JUSTICE EMMANUEL A. LODOH, J.

CM/RPC/0400/2022

HATOUM ANWAR KAMAL **PLAINTIFF**

PLOT NO. 81, SPINTEX RD, ACCRA

DIGITAL ADDRESS: GZ-194-7749

VRS.

1. JEAN NASR MERHEB SANDRA **DEFENDANT(S)**

TANIA'S SALON, NEXT TO 18TH LANDE

RESTAURANT & BAR, OSU, ACCRA

2. JOE SAMMAR (A.K.A YOUSSEF ZOUMMAR

3. MICHEL ZAMMAR

BOTH OF OUTDOOR LIMITED, PALM SQUARE

SPINTEX RD, ACCRA

JUDGMENT

The Plaintiff in this action is seeking the recovery of a liquidated amount, the subject matter of a trust, with interest thereon from the Defendants. The Plaintiff therefore commenced this action to recover the funds per a Writ of Summons issued from the Registry of the Commercial Court on 20th April, 2022 against the 1st Defendant. The writ of summons was however subsequently amended following the joinder of the 2nd and 3rd Defendants. Thus per an Amended Writ of Summons was filed on 14th November, 2023.

Thus per the Amended Writ of Summons filed on 14th November, 2023, the Plaintiff seeks the following reliefs from the Defendants:

(a) Recovery of the sum of USD40,000.00 or its Cedi equivalent from the 1st Defendant being investment which she holds in trust for the Plaintiff in Outdoors Limited, a restaurant business at Palm Square, Spintex Road, Accra which is partly owned by the 1st Defendant.

(b) Interest on the said amount or its Cedi equivalent at the current bank rate from 1st March, 2022 to the date of final payment.

Summary of case of the Plaintiff

The case of the Plaintiff as pleaded in his Amended Statement of Claim filed on 14th November, 2023 is that sometime in December, 2019, he invested an amount of Forty thousand United Stated Dollars (USD 40,000.00) in a company called Outdoor Limited, which is a restaurant business located at Palm Square, Spintex Road in Accra. He contended further that the said restaurant is partly owned by the 1st Defendant.

Concerning, how the said sums came to be invested in the said business and the associated terms thereof, the Plaintiff averred in paragraphs 4 to 6 of his Amended Statement of Claim as follows:

4. The Plaintiff states that at all material times to this action, his investment of US$40,000.00 constituted on-third of the total capital of the Outdoors Limited.
5. By a deed of trust dated 16th December, 2019 and made between the parties, the Plaintiff transferred his said investment I the Restaurant, Outdoor Limited, to the 1st Defendant.
6. The Plaintiff states that per the terms of the deed of trust signed by the parties, the 1st Defendant was required to give the Plaintiff a weekly report of the income and expenditure in the management of the Restaurant.

Regarding the circumstances that triggered the action the plaintiff alleges that 1st Defendant had rarely provided any report on the management of the restaurant, in breach of the stipulations in the Deed of Trust, despite several demands and reminders.

The plaintiff contend that it is rather the husband and his brother, who have taken over the management of the Restaurant who have chosen to give him some monthly reports, and act the Plaintiff considers irregular.

The Plaintiff alleges further that he repeatedly raised these concerns with the 1st Defendant about the Restaurant's management, specifically protesting her persistent refusal to permit him access to the audited accounts.

That, frustrated by the 1st Defendant's failure to account for the business, he orally informed her in June 2020 that he would demand repayment of his investment if she did

not fulfill her obligations under the trust deed, but she ignored this notice. According to the Plaintiff, more than a year after his initial demand and following several subsequent several requests, the last made in July 2021, the 1st Defendant agreed to repay the investment by the end of September 2021 but did not do so.

The Plaintiff states that all efforts to recover the investment from the 1st Defendant, including demands letters sent his solicitors, have been deliberately disregarded by the 1st Defendant. The Plaintiff finally contends that he has given 1st Defendant sufficient notice of his intention to determine the trust arrangement and recover his USD40,000.00 investment.

Case of the 1st Defendant

The case of the 1st Defendant is contained in her Statement of Defence filed on 14th September, 2022. The 1st Defendant only admitted that the Plaintiff and the 1st Defendant are parties to a Deed of Trust. 1st Defendant further admits that she is a shareholder of Outdoor Limited. She however denied that the Plaintiff gave her an amount of USD40,000.00 and further that per the terms of the trust she was obligated to provide weekly reports of the income and expenditure in the management of the company to the plaintiff. Her denial was expressed in paragraph 7, 8 and 9 of her Statement of Defence as follows:

7. Defendant denies paragraphs 6, 7, 8, 9 and 10 of the Statement of Defense and shall put the Plaintiff to strict proof.
8. In further denial of paragraph 11, Defendant says that it never received any money from the Plaintiff and she could not have promised to pay back monies she has not received from the Plaintiff.
9. Defendant vehemently denies paragraph 12 and 13 and says in answer that the Plaintiff has never given her any money for which she was expected to

pay back. Plaintiff has failed to demonstrate to the court that indeed the alleged $40,000 was paid to her to hold in trust for the Plaintiff and therefore Plaintiff has a cause of action against the Defendant.

The 1st Defendant prayed for the case of the Defendant to be dismissed.

Case of the 2nd and 3rd Defendants

The case of the 2nd and 3rd Defendant is contained in their Statement of Defence filed on 17th April, 2024. According to the 2nd and 3rd Defendants, the Plaintiff invested an amount of USD40,000.00 in Outdoors Limited. They also admitted that the Plaintiff investment constituted one0thired of the total capital of Outdoor Limited. They also admitted that the Plaintiff executed a deed of trust with 1st Defendant. They finally admitted Plaintiff's claim that they managed Outdoor Limited.

The 2nd and 3rd Defendants, with exception of these admissions denied all the other allegations of the Plaintiff.

Issues for Trial

This case having been initiated from the Registry of the Commercial Court, unsuccessful attempts were made to have the issues in this case resolved at Pre-trial settlement conference. Following the breakdown of settlement, the Pre-Trial Judge on 24th February, 2023 set down a sole issue for determination by the Trial Court.

The sole issue is whether or not the parties are bound by the terms of the Trust Deed executed between them on 16th December, 2019.

The Trial

The record will show that only the Plaintiff testified during the trial. His witness statement dated 13th June, 2023 was admitted in evidence. On 3rd of June, 2025, the Plaintiff decided against calling its first witness and therefore closed his case. The Defendants on the other had also elected not to testify.

Burden of Proof

An appreciation of the respective pleading by the parties will show that this case essentially derives from a contract in the nature of a Deed of Trust created by a Settlor, that is, the Plaintiff. The Plaintiff case against the Defendants, and particularly the 1st Defendant is an allegation of a failure to comply with certain obligations under the Deed of Trust. Whether the alleged non-compliance amounts to a breach of the terms under the Deed of Trust will be determined subsequently, however what is important for the moment is to determine which of the parties bore the burden of persuasion and the evidential burden.

The circumstances under which the legal burden is cast is contained is underscored under the Evidence Act, 1975 (NRCD 323), particularly sections 10 (1)(2)(b); 11(1) and (4); 12 , 14 and 17.

It is trite knowledge that a person who makes asserts the existence of a fact, which is denied, bears the burden to proof to the court the existence of that fact. Indeed in the case of **Owusu v Tabiri [1987-88] 1 GLR 287 @293**, Mensah J held that *"it is trite principle of law, that he who asserts must prove and the ne asserting must win his case on the strength of his own case and not on the weakness of the defence".*

Again in the case of **Madam Linda Sagoe and 5 others v Social Security and National Insurance Trust, Civil Appeal Number J4/50/2011** delivered on 30th May, 2012, the Supreme Court per Gbadegbe, JSC stated as that:

"Writing on the subject "Incidence of the legal burden", the learned authors of Halsbury's Laws of England, Volume 17 on Evidence at paragraph 14 of page 11 state as follows:

> *"The legal burden of proof normally rests upon the party desiring the court to take action, thus a claimant must satisfy the tribunal that the conditions which entitle him to an award have been satisfied. In respect of a particular allegation, the burden lies upon the party for whom the substantiation of that particular allegation is an essential of his case."*

Finally in the case of **Okudzeto Ablakwa (No. 2) vs. Attorney General & Another [2012] 2 SCGLR 845 at 867**, the court explained the law governing the burden of proof as follows:

> *"If a person goes to court to make an allegation, the onus is on him to lead evidence to prove that allegation, unless the allegation is admitted. If he fails to do that, the ruling on that allegation will go against him. Stated more explicitly, a party cannot win a case in court if the case is based on an allegation which he fails to prove or establish."*

From the authorities stated supra, it is my considered view that where a party alleges a breach of trust, that party bears the burden of persuasion to prove it. Therefore where a settlor brings a claim against the trustee for breach, the settlor must prove the facts necessary to establish a breach and show that the trustee failed to comply with the trust terms or fiduciary duties.

Regarding the standard of proof in civil trials, the Supreme Court case **of Bisi v Tabiri & Anor [1987-88] 1 GLR 360 at page 361**, is captured in holding 2 of the report as follows:

"The standard of proof required of a Plaintiff in a civil action was to lead such evidence as would tilt in his favour the balance of probabilities on the particular issue. The demand for strict proof of pleadings had however never been taken to call for an inflexible proof either beyond reasonable doubt or with mathematical exactitude or with such precision as would fit a jig-saw puzzle. Preponderance of evidence became the triers belief in the preponderance of probability."

Finally, let me state that the fact that the Defendants did not testify does not mean the Plaintiff is reliefs of its obligation to put before the Court evidence sufficient to persuade the court that the existence of the facts its claims is more probable than its non-existence. Indeed this principle was clearly laid out in the case of **Tei and Another v CEIBA Intercontinental (2017-2018) 2 SCGLR 906 at 919,** where Pwamang JSC stated as follows:

"It must be remembered that the fact that a defendant does not appear to contest a case does not mean that the Plaintiff would be granted all that he asks for by the Court. The rule in civil cases is that he was alleged must prove on the balance of probabilities and the burden is not lightened by the absence of the defendant at the trial. The absence of the Defendant will aid the Plaintiff only where he introduces sufficient evidence to establish a prima facie case of entitlement to his claim".

The absence of the Defendant will aid the Plaintiff only where he introduces sufficient evidence to establish a prima facie case of entitlement to his claim"

Deed of Trust

I will firstly deal with the threshold question whether or not the Plaintiff and 1st Defendant executed a Deed of Trust. The determination of this issue first is key since is forms the basis upon which the cause of action has been mounted.

As indicated the summary of the party's pleadings, no issues were joined in respect of the plaintiffs claim of the existence of a Deed of Trust between the Plaintiff and the 1st Defendant, since the Defendants admitted to same.

The legal effects of such admissions is that the Plaintiff need not lead any evidence in proof of the claim, because same will be accepted as the case. In the case of **Fori v Ayirebi and Others [1966] GLR @627** as follows:

> *"When a party had made an averment and that averment was not denied, no issue was joined and no evidence need be led on that averment. Similarly, when a party had given evidence of a material fact and was not cross-examined upon, he need not call further evidence of that fact."*

Therefore applying the case law to the facts herein, I find that the Plaintiff and the 1st Defendant executed a Deed of Trust on 16th December, 2019.

Terms of the Deed of Trust

The Plaintiff per the Deed of Trust is referred to as the Settlor. This means that he is the person who created the trust and funds same by transferring assets into it and sets the terms for how those assets are to be managed and distributed.

There is not dispute that he Deed of Trust was made and executed between the parties on 16th December, 2019. According to the Plaintiff in his pleadings the terms of the Deed of Trust required that the 1st Defendant to give weekly reports of the income and expenditure in the management of the Restaurant. The question therefore is whether the Deed of Trust contains the obligations or duty alleged against the 1st Defendant.

The Plaintiff tendered the Deed of Trust as Exhibit "C". An examination of the executing parties will show that same was executed by the Plaintiff as the Settlor and the 1st Defendant as the Trustee. The body of evidence will show that the authenticity of the Exhibit "C" remained unchallenged by the 1st Defendant. In the case of **National Investment Bank Ltd. v Messrs Agyakot Co. Ltd & Ors (H1/136/2006)** delivered 1st November, 2007 the Court of Appeal stated that::

> *"Where a witness had given a material evidence and that evidence was not challenged on cross-examination, the court might invariably take the failure to challenge as an admission by the opponent of the truth of the matter stated."*

From the forgoing, I find no reason on the record to discount the authenticity of Exhibit "C" as the copy of the Deed of Trust entered between the Plaintiff and the 1st Defendant. I therefore accept the evidence of the Plaintiff that Exhibit "C" is the Deed of trust executed between the Plaintiff and the 1st Defendant.

I will now proceed to examine Exhibit "C" to determine whether it contained the duty alleged against the 1st Defendant. This route of determining the issue is elected because I am of the considered view that the legal relationship between the Plaintiff and the 1st Defendant can only gleaned from Exhibit "C".

In the case of **Inusah v D.H.L Worldwide Express [1992] 1 GLR 267** the court held as follows:

> **"The general rule was that when a document containing contractual terms was signed, then in the absence of fraud or misrepresentation, a party of full age and**

understanding was bound to the contract to which he appended his signature. In such a case it would be immaterial whether he read the document or not".

The Plaintiff evidence on the issue is contained in paragraph 7 of his witness statement as follows:

> 7. It is provided under clause 4 (b) of the said Deed of Trust, exhibit C that, the Defendant should give me a weekly report of the income and expenditure in connection with the running of the Restaurant. In spite of the said provision, the Defendant failed to give me a weekly report for more than 2 years after we signed Exhibit C in December, 2021, despite my persistent demands and reminders.

An examination of the Exhibit "C" will show that same aligns with the evidence of the Plaintiff that clause 4 (b) imposes a duty on the 1st Defendant in her capacity as a trustee to give a weekly report of the income and expenses in the running or management of the Restaurant. Clause 4(b) was expressed in of the Deed of Trust as follows:

> 4(b) Shall give a weekly report of the income and expenses in the running or management of the Restaurant.

Status of Transfer of USD40, 000.00

Before I proceed to deal with the vexed question whether or not the 1st Defendant had failed to carry out her duty as a trustee under clause 4 (b) of the Deed of Trust as alleged by the Plaintiff, I find it necessary to deal with the question of whether or not the sum of US$40,000.00 was paid to the 1st Defendant by the Plaintiff and further whether the said sum was received by the 1st Defendant.

This issue even though not set down for trial, was given life by the 1st Defendant when she denied that the she received the sum of USD40,000.00 from the Plaintiff. These denials are contained in paragraph 8 and 9 of the 1st Defendant's Statement of Defence as follows:

> 8. In further denial of paragraph 11, Defendant says that it never received any money from the Plaintiff and she could not have promised to pay back monies she has not received from the Plaintiff.
> 9. Defendant vehemently denies paragraph 12 and 13 and says in answer that the Plaintiff has never given her any money for which she was expected to pay back. Plaintiff has failed to demonstrate to the court that indeed the alleged $40,000 was paid to her to hold in trust for the Plaintiff and therefore Plaintiff has a cause of action against the Defendant

The evidence of the Plaintiff regarding the payment of the USD40,000.00 is contained in paragraph 4 of his witness statement as follows:

> 4. Between 8th August, 2019 and 5th October, 2019, I paid a total amount of the Cedi equivalent of US$40,000.000 through my son, Kamal Hatoum Anwar to the Defendant's husband, Joe Zammar and his brother, Michel Zammar, both of whom at all material times to this action acted as her agents. Upon receipt of each payment, receipts was issued by the recipient to me. Photocopies of the receipts issued to my son by Joe and Michel Zammer acknowledging receipt of the money are attached to my statement and marked as Exhibit A series.

A trust is said to be properly constituted in two ways. In the case of **Soon Boon Seo v Gateway Worship Centre [2009] SCGLR 278 at 294-296,** Akuffo JSC stated that:

"A trust is completely constituted when the trust property is vested in the trustee for the benefit of the beneficiaries. The classic statement of the law as to what it meant by complete constitution (or perfect creation) of a trust is to be found in the judgment of Turner LJ in the leading old case of Milroy v Lord (1862) 4 De GF & J at pages 274-275 of the Report as follows:

> *"…in order to render a voluntary settlement valid and effectual, the settlor must have done everything which, according to the nature of the property comprised in the settlement, was necessary to be done in order to transfer the property and render the settlement binding upon him."*

According to Da Rocha and Lodoh's 'Ghana Land Law and Conveyancy' (supra), a trust may be completely constituted in two ways (a) by the settlor conveying the property to the trustees; or

(b) by the settlor declaring himself to be a trustee for the intended cestui que trust."

I have examined the receipts tendered by the Plaintiff and I again find that it aligns with his evidence. Now even though the 2nd and 3rd Defendants did not testify, it is my considered view that I cannot gloss over their admissions in their pleadings which clearly confirms the Plaintiff's claims regarding the payment of the said sums to the 1st Defendant.

My findings also finds further support in clause 1, 2 and 3 of the Deed of Trust which was executed by the 1st Defendant and which is expressed as follows:

1. The Trustee is part owner of a company which operates a restaurant known as Outdoor Restaurant which is situate at Palms Square, Flower Pot

Roundabout, Shop N. 5, Spintex Road, Accra (hereinafter called "The Restaurant") in which the Settlor has invested the sum of Forty Thousand UD Dollars (US$ 40,000.00)(hereinafter called "the investment") as at the date of the execution of this instrument which constitutes one-third of the total capital so far invested by the shareholders in the restaurant.

2. The Settlor has agreed to transfer the Investment to the Trustee in trust for and the benefit of the Settlor and the Trustee has agreed to so act.
3. In consideration of the acceptance by the Trustee to act as Trustee of the Investment for the benefit of the Settlor, the Settlor hereby constitutes and appoints the Trustee to hold the investment in trust for him with effect from the date of execution in the instrument.

My finding is that since these terms presumes that the investment funds has been transferred to effectuate the execution, the execution of the Deed of Trust by the 1st Defendant creates a presumption of performance against her and therefore the evidential burden shifts to her to put before the Court evidence to establish that no said funds were transmitted to her. Unfortunately, she did not testify. I therefore find that her failure to testify to the contrary is fatal to a favourable finding in her favour.

Accordingly, I find that the Plaintiff has put before this Court evidence to show that the sum of USD40,000.00 was given to the 1st Defendant through her agents, in her capacity as a Trustee in satisfaction of the Plaintiff's obligations under the Deed of Trust.

But the question is whether the USD40,000.00 was meant to be kept by the Trust for which same may be probably recoverable. I have examined the objects of the Deed of Trust, that is clause 1, and the evidence of the Plaintiff and I find that same was meant to be

investment in the Restaurant, which is a limited liability entity and further that the whole US$ 40,000.00 was used as capital for the Restaurant business.

This findings is supported by the responses of the Plaintiff during his cross-examination by

Q: Per exhibit A series, the company you invested a total of US$40,000.00 issued you with receipts, not so?

A: Yes

Q: Your investment constituted 30% of the value of the company, is that right?

A: No.

Q: What is the percentage of your investment?

A: I own one third. Which is 33.33%.

Q: So per exhibit N, you received a total of US$6,355.00 as your profit on the investment for the period between January and May, 2021 not so?

A: We did not audit the profit but I received an amount of US$6,300.00

Q: I put it to you that, exhibit N is explicit that, the said US6,355.00 was profit from the period January to May 2021.

A: No.

Q: The Company you invested in acts through human beings.

A: Yes

Q: And these human beings are officers and or agents of the company, will you agree with me?

A: Yes

It is therefore my considered view that the sum of US$40,000.00 was not kept by the Trust but was paid to the company as equity.

Breach of Trust

I will now proceed to deal with what to all intent and purposes is the most vexed question in this matter. This is whether or not the 1st Defendant had breached her duties as provided for under clause 4(b) of the Deed of Trust.

I have stated in earlier paragraphs that the only reason why the Plaintiff is seeking the return of his investment with interest is that the 1st Defendant had failed to give him weekly reports of the income and expenses in the running or management of the restaurant. So what evidence did the Plaintiff put before the Court in proof of these claims.

Before I proceed to determine the question however, let me state that I find no provision in the Deed of Trust regarding how the Deed of Trust may be determined or for that matter whether or not non-compliance with the any of the operative clauses therein constitutes a fundamental breach for which the Settlor may terminate the Trust.

Be that as it may, accordingly to the Plaintiff despite repeated demands for the weekly reports, the 1st Defendant repeatedly failed to furnish him with same. His evidence is further that it was rather provided with monthly reports from Defendant's husband Joe Zammer and his brother Michel Zammer. His testimony is as follows:

> 7. It is provided under clause 4 (b) of the said Deed of Trust, exhibit C that, the Defendant should give me a weekly report of the income and expenditure in connection with the running of the Restaurant. In spite of the said provision, the Defendant failed to give me a weekly report for more than 2 years after we signed Exhibit C in December, 2021, despite my persistent demands and reminders.

8. Instead of providing me with the weekly report as stated in exhibit C, the Defendant's husband, Joe Zammer, who later took over the management of the Restaurant, rather unilaterally decided to sent me monthly reports through my son, Kamal Hatoum's email. Even the monthly reports were not regularly sent. In fact the first reports I received was almost a year after the Restaurant started operations. The reports which were sent by email from Michel Zammar to my son, Kamal Hatoum's email were captioned "Breakdown for income and Expenses from December, 2019 through to August 2020. A copy of the said email together with its attached reports are attached to this statement and marked as Exhibit D series.

9. I have also attached to this statement another email from Michel Zammar to my son, Kamal Hatoum, on my behalf, dated November, 28, 2020 on the subject "Updated Profit and Loss Statement" which attached the reports titled "Statement of Profit or Loss" of Outdoor Limited, "for the period December 2019 to August, 2020". Which have marked as Exhibit E series.

10. I have also attached the monthly reports on the Restaurant. Outdoor Limited for July, 2021, August, 2021, September, 2021, October, 2021, November and December 2021, which were forwarded to my son's email by Mr. Michel Zammar dated August 24, 2021, September 17, 2021, November 13, 2021, November 19, 2021, and January 27, 2022, which have marked as Exhibits F, G, H, J, and K respectively.

11. Some of the monthly reports that were sent to me through my said son, Kamal Hatoum by the Defendant's Michel Hammar were not

even reliable. For instance on 9+h June. 2021. Michel Zammar forwarded to Kamal Hatoum's email a "2021 Profit or Loss Accounts" which attached a report from January to May, 2021. A copy of the said email and the report are attached to this statement as Exhibit L series. Another report was sent to Kamal Hatoum by the self-same Michel Zammar on July, 28, 2021 which was on the subject "May and June report", a copy of which is attached also to this statement as Exhibit M series.

12. It-can be seen from exhibit L series that the amount which has been stated as Net Profit (Loss) before Taxation, for May, 2021 is GHC44.763.25. which is different from what has been stated in exhibit M series. as Net Profit (Loss) before Taxation., for same month of May, 2021, which is GHO22,126.67. When I asked why the figures for the same month were different, no reasonable explanation was given to me by the Defendant or her agents.

13. That after having been unduly denied timely and reliable reports on the running of the Restaurant for several months and without any reasonable explanation by the Defendant, I requested many times that the Defendant should allow me to inspect the audited accounts of Outdoors Limited but my requests were ignored.

The question therefore is whether the evidence of the Plaintiff on the issue regarding the alleged breach of the Deed of Trust by the 1st Defendant is sufficient to persuade the Court to make a finding in his favour.

Again I have examined the documentary evidence attached to the witness statement of the Plaintiff representative and I find no evidence to support his claims that he had severally requested the 1st Defendant to comply with clause 4(b) of the Deed of Trust. The only two letters attached to his witness statement were letters authored by his lawyers recalling the investment of US$40,000.00. These letters were dated 1st February, 2022 and 4th March, 2022.

In the February, 2022 letter (Exhibit "P") Counsel for the Plaintiff in paragraphs 4 and 5 as follows:

> 4. However, since the commencement of the agreement, more than two years ago, you have rarely if at all given any weekly reports as expressly provided therein. Even the monthly report which you have instead, chosen to give to him has not been regular.
> 5. On a number of occasions our client has expressed his concern and frustration about the management of the Restaurant particularly the lack of financial transparency or lack properly audited statement of account.

In the absence of any evidence to suggest that the plaintiff consistently complained to the 1st Defendant about her non-compliance, I find myself unable to rely on the evidence before the court support a finding that the 1st Defendant breached the terms of the Trust by relying on a letter written by a lawyer on 1st February, 2022 and 1st March, 2022, in what to all intent and purposes was a letter written in anticipation of a suit. The suit being on 20th April, 2022.

I am of considered view that a Court should tread with caution in deciding the weight to attach to such letter written by lawyers, particularly when no evidence of acknowledgment of the contents are made.

Accordingly, I find from plaintiff's own showing that he was given monthly reports coupled with the paucity of evidence regarding the failure of the 1st Defendant furnish the Plaintiff with weekly reports, I find that the Plaintiff has failed to satisfy the Court, prima face, that the 1st Defendant breached the Deed of Trust and therefore ought to be personally liable for the return of the trust fund.

I further find that the trust funds was invested in the Outdoor Restaurant with the authority of the Plaintiff. That is Plaintiff as the Settlor authorized that the sum of USD 40,000.00 should be invested in the Restaurant, therefore the Trust fund was no longer in the custody and control of the 1st Defendant.

Conclusion

In conclusion I find that the Plaintiff has failed to put before the Court, evidence to establish on the preponderance of probabilities that the 1st Defendant failed to perform its fiduciary duties for which the consequence of the failure is for an order directed at the 1st Defendant in her capacity as a trustee to return the trust funds with interest.

As a consequence of this finding, the Plaintiff's case against the defendants is accordingly dismissed. Given the uniqueness of the relationship between the parties and the fact that I am of the view that this matter ordinarily ought not to have been prosecuted to the letter, I am not inclined to award cost against the Plaintiff. The parties shall therefore bear their respective individual costs.

Emmanuel A. Lodoh

(Justice of the High Court)

Lawyers

1. Charles Kusi, Esq. Counsel for the Plaintiff.

2. Joseph Kwodwo Amankwaa, Esq. Counsel for the Defendants.